STANDARD OPERATING PROCEDURE			P-4730	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **04/08/25**	DATE REVISED	DATE REVIEWED
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES		
SUBJECT GUARDING HOSPITALIZED INMATES/ARRESTS		CROSS REFERENCE G-6100 USE OF FORCE CONTINUUM		

I. Purpose:

The purpose of this policy is to establish the procedures for guarding hospitalized suspects/inmates arrested by Road Patrol deputies or being held by the Sarpy County Department of Corrections.

II. Policy:

It is the policy of the Sarpy County Sheriff's Office to assist with guarding persons arrested/held at the Sarpy County Department of Corrections that required hospitalization. Deputies shall only guard hospitalized arrests/inmates in accordance with this policy.

III. Procedure:

A. Hospitalization of Suspects:

1. There is no provision for placing a written or verbal "Hospital Hold" on any suspect who requires hospitalization.

2. If a suspect is being treated at a hospital, the SCSO may request notification of discharge.

a) Deputies shall receive approval from a supervisor prior to requesting notification of discharge.

3. Deputies shall adhere to the following hospital procedures for misdemeanor arrests:

a) Deputies shall issue citation(s) before hospitalization, if possible.

b) If unable to issue citation(s) prior to hospitalization, deputies shall apply for a warrant; swear out affidavits, etc.

c) Misdemeanor arrestees may also be released on their own recognizance by the duty judge.

4. If a deputy comes into contact with a hospitalized subject who has a warrant on file, the deputy shall obtain a home address, business address (if possible), and any other information that shall assist in locating the person upon his or her release.

a) The follow-up information shall be documented in Case Notes under the original Case Report or in an incident report as appropriate.

B. Hospital Guards Requirements:

1. Fresh Arrest Hospital Guard-Special Assignment:

a) The SCSO may provide hospital guards for injured or sick felony suspects who have been arrested by the SCSO, but not yet booked and who pose a risk to public safety. Such hospital guards shall be approved by the Captain of the Division who took the suspect into custody.

b) Staffing of this detail shall be coordinated by the captain authorizing the hospital guard or their designee.

2. Requests for Hospital Guard from Outside Agencies other than SCDC and the JJC:

a) Requests from outside agencies, other than SCDC and the JJC, to assist with hospital guards shall be reviewed and/or approved by the Captain of the Division to which the request was made.

b) The hospital guard in this instance shall be coordinated by the Division Commander or designee which granted the request.

3. In Custody Hospital Guard: The SCSO road patrol shall be dispatched to the Sarpy County Jail for rescue calls regarding inmates.

a) The SCSO may be requested to guard ‘high priority’ inmates from the Sarpy County Department of Corrections (SCDC) and the Juvenile Justice Center (JJC) that are transported and/or admitted to a hospital with physical health issues.

b) A 'high priority' inmate is defined as an inmate who has the following active charges:

(1) Murder I
(2) Murder II
(3) Escape
(4) First or second-degree assault.
(5) First degree sexual assault.
(6) Marshal's prisoner (requires two armed guards).
(7) DV Strangulation

c) The SCSO shall not be responsible for the guard of any prisoner without at least one of the above criteria.

C. SCSO Guard Procedures:

1. The deputy responding to the rescue call or hospital for a current SCDC inmate shall request a face sheet from the booking Sergeant which shall list the inmate's current charges. If the current charges are not of "high priority" criteria, the deputy shall not be responsible for inmate guard duty. Past history of offenses in the "high priority" categories does not satisfy the criteria for SCSO guard duties.

2. If the charges are "high priority," the deputy shall accompany the inmate to the respective medical facility and shall be responsible for inmate guard until relieved. The deputy shall notify the on-duty road patrol sergeant of the guard duty details via telephone.

3. The on-duty sergeant or designee shall notify the Court Security Unit Sergeant to send a request to SCSO sworn personnel to staff the guard duty. If no response is received after fifteen (15) minutes, an alert sense page to the "inmate security callback" group if the inmate is estimated to be at the medical facility for longer than two (2) hours in the emergency room or shall be admitted. The Court Security Sergeant shall wait 15 minutes for response from these groups. If no response is received, the Court Security Sergeant shall contact Frye Frazy and/or Nesbitt's private security companies to secure an active law enforcement certified armed guard for the hospital duty to relieve the road patrol deputy. The Court Security Sergeant shall be responsible for coordinating further inmate guard for the remainder of the inmate's hospital stay.

4. If an exception is being requested by the Sarpy County Department of Corrections or the Juvenile Justice Center (JJC), the Court Security Captain or Lieutenant shall be contacted for a decision of whether to guard the inmate. If a hospital guard is authorized, the Court Services Unit shall send a deputy to the hospital to guard the inmate until relieved by either a deputy called in on

overtime, a sworn deputy or officer from the alert sense group, or a contracted armed certified law enforcement officer from a pre-determined private security company (see procedures listed in "SCSO guard procedures").

D. Court Services Supervisor shall be responsible for:

1. Assembling a Hospital Guard Pass-On-Book within 24-hours of the start of the detail that includes the following:

a) Hospital Detail Pass on Log.
b) Hospital Detail Worksheet.
c) Copy of this policy.
d) Use of Force policy.
e) Two (2) recent color photos of the inmate.

2. Visiting the site of the detail as needed.

3. Ensuring that the following steps are taken:

a) Hospital Security staff is notified and made aware of the situation.

b) If an inmate is being guarded, information has been obtained from SCDC in reference to any security issues regarding the inmate.

c) The respective chain of command is made aware of the detail as soon as the preliminary details are known.

d) The individual being guarded has been record checked.

e) Arrangements are made for a division cell phone and charger to be brought to the site of the detail.

f) The coordinating sergeant or designee shall request a 'secure' floor at the hospital while the inmate/suspect is admitted.

E. Deputies assigned to the hospital guard shall observe the following procedures:

1. The deputy assigned to the hospital guard shall remain responsible for the person until properly relieved or advised by the Division Supervisor.

2. Deputies working such details shall, as in any other duty or assignment, remain awake and shall maintain an appropriate level of alertness throughout the entire tour regardless of the person's medical condition.

3. Deputies assigned to work such details shall conduct themselves in a professional manner in accordance with the SCSO "Code of Conduct" policy.

4. Deputies working a guard assignment detail shall wear their SCSO Class A or Utility uniform.

5. The deputy shall conduct a thorough check of the hospital room and patient restroom for contraband, weapons, or other items that may compromise security or facilitate an assault or escape.

6. Deputies beginning their shift shall immediately visually and physically check all restraints to ensure that the person is secured to the hospital bed (if possible) and that all restraints are double locked.

7. Hospitalized prisoners, with the exception of pregnant prisoners (see Section F below), shall be restrained with leg irons. Additional restraining devices shall be used based upon the degree of risk involved and the type of medical treatment being provided.

8. Restraining devices shall be removed only when directed by medical personnel but only as necessary for proper treatment of the prisoner.

9. The Deputy shall position him/herself at the detail (if possible) so that he/she can monitor the inmate and observe anyone BEFORE they can enter the inmate's room.

10. The individual being guarded is prohibited from having contact with anyone other than representatives from the healthcare facility, the SCSO, and/or SCDC/JJC personnel if applicable.

11. Deputies assigned to guard a person shall avoid fraternizing with them at any time.

12. The person being guarded is prohibited from receiving any visitors, phone calls, food (other than from the hospital facility), letters, notes, cards, flowers or gifts of any kind unless otherwise stated from a court order.

13. If any visitors or gifts are approved, they shall be searched prior to entering the room.

14. The person being guarded is also prohibited from using the telephone and from sending notes, cards or letters of any kind to anyone.

15. Deputies working the details are prohibited from receiving visitors while working the detail.

16. Eating utensils shall be closely monitored so that the prisoner cannot use such items as a weapon or possible escape device.

17. Deputies shall be alert for indications of any current health problems, medications taken by the prisoner, and anybody deformities or injuries.

18. Deputies shall bring to the attention of their supervisor any request by hospital staff that may jeopardize prisoner security.

19. If possible, the deputy working the detail needs a restroom break, the deputy shall utilize the restroom located inside the hospital room. The deputy is prohibited from passing on their guard duties to anyone except sworn law enforcement officers.

20. Deputies shall document any significant activities as follows:

a) If an inmate is being guarded significant activities shall be documented in the pass-on-book.

b) If a suspect is being guarded significant activities shall be documented in the applicable Case Report or in an Officer Narrative in the appropriate Case Folder.

c) Changes to the detail such as movement of the person, a change in the medical status of the person, or any other information deemed important by the deputy shall be passed on to the Court Services Division Sergeant as soon as possible.

d) The ‘oncoming’ deputy shall make phone contact with the Deputy currently working the detail to verify the person is still being guarded and to ascertain the current room number. This call shall be made BEFORE going to the hospital.

e) If the person is released from the hospital the division sergeant shall be notified and the relieving deputy shall also be contacted so they do not report to the hospital.

F. Healthy Pregnancies for Incarcerated Women Act:

1. In accordance with the Healthy Pregnancies for Incarcerated Women Act and in agreement with the SCDC:

a) Deputies shall not be present in the delivery room if a detainee/prisoner is in labor except upon the request and authorization of medical personnel.

b) If a deputy’s presence is requested a female deputy shall be assigned if feasible.

c) If not requested or approved, assigned deputies shall remain directly outside of the room during labor and childbirth.

d) SCDC staff shall accompany deputies in these circumstances and shall be responsible for restraining the detainee/prisoner as well as documenting such restraints in accordance with Nebraska State Statute.

e) If the person has given birth and the mother is allowed to have contact with the infant, no deputy shall handle the infant unless exigent circumstances exist.

G. Escape from Medical Facility:

1. In the event of an escape the deputy on site shall:

a) Follow the existing SCSO Use of Force policy with regard to stopping, restraining, and apprehending the person.

b) Adhere to the procedures on escaped prisoners in the SCSO “Prisoner Transport Procedures” policy.

c) Notify his/her chain of command of the escape.